

CV-24-001542 ADAMS, JANICE vs NATIONWIDE MUTUAL INSURANCE COMPANY – a) Petition for Order Confirming Appraisal Award – GRANTED, and unopposed; b) Respondent’s Motion to Vacate Or, in the Alternative, Correct Appraisal Award – GRANTED in part as to correction.

County: stanislaus

Division: Civil Law and Motion

Department: 21

Hearing date: 2012-04-02

Motion: The total amount is listed as \$505,789.30, but the total appears to be \$505,789.25. As such, the Court makes this correction. a-b) On April 20, 2026, Petitioner filed a verified petition for order confirming appraisal award pursuant to Code of Civil Procedure, section 1292.2. The filing included the April 20, 2026 Declaration of Nicholas J. Loncarich. On June 11, 2026, Petitioner filed a reply. The reply included the June 11, 2026 Declaration of Nicholas J. Loncarich, which was filed in two parts. No opposition was filed. On June 18, 2026, the Court continued the matter and approved the filing of Respondent’s original opposition, a declaration by Mr. Boggs regarding effort to file opposition, and an opposition by Mr. Loncarich. The Court is unable to locate Respondent’s original opposition and any declaration by Mr. Boggs regarding efforts to file an opposition to the petition for order confirming appraisal award. Instead, it appears Respondent filed a June 20, 2026 Supplemental Declaration of Josiah Boggs addressing efforts to file Respondent’s competing motion to vacate after the original motion had been filed and served by e-mail. It does not appear that Respondent ever opposed the petition, although he told the court he had. On June 11, 2026, Respondent filed a motion to vacate, or in the alternative, correct appraisal award pursuant to Code of Civil Procedure, sections 1286.2 and 1286.6, and applicable insurance policy provisions, along with a two-page memorandum of points and authorities. The filing included the June 11, 2026 Declaration of Josiah Boggs. Respondent also filed the June 20, 2026 Supplemental Declaration of Josiah Boggs which addresses efforts to file the motion to vacate, or in the alternative, correct appraisal award. On June 23, 2026, Petitioner filed an opposition to Respondent’s motion to vacate. “Any party to an arbitration in which an award has been made may petition the court to confirm, correct or vacate the award.” (Code Civ. Proc., § 1285.) “If a petition or response under this chapter is duly served and filed, the court shall confirm the award as made, whether rendered in this state or another state, unless in accordance with this chapter it corrects the award and confirms it as corrected, vacates the award or dismisses the proceeding.” (Code Civ. Proc., § 1286.) Code of Civil Procedure § 1286.2 sets forth specific grounds for vacation of award. Code of Civil Procedure § 1286.6 sets forth specific grounds for correction of award. “A petition to confirm an award shall be served and filed not later than four years after the date of service of a signed copy of the award on the petitioner.” (Code Civ. Proc., § 1288.) “A petition to vacate an award or to correct an award shall be served and filed not later than 100 days after the date of the service of a signed copy of the award on the petitioner.” (Id.) “A response shall be served and filed within 10 days after service of the petition except that if the petition is served in the manner provided in paragraph (2) of subdivision (b) of Section 1290.4, the response shall be served and filed within 30 days after service of the petition.” (Code Civ. Proc., § 1290.6.) Petitioner argues correctly that Respondent has filed no opposition to the petition. The Court nonetheless considers the merits. Courts must confirm an appraisal award unless statutory grounds exist to vacate or correct it. (See Code Civ. Proc., § 1286.) Awards should normally stand immune to judicial scrutiny. (Moncharsh v. Heilly and Blase (1992) 3 Cal.4th 1, 10). Nonetheless, it appears that the requested award is indisputably five cents off, and the correct amount is \$505,789.25, not \$505,789.30. Accordingly, the petition is GRANTED in the amount of \$505,789.25. Respondent’s competing motion to vacate, or in the alternative, correct appraisal award contains two short paragraphs of generalized, unsupported argument. Where a party fails to support arguments with specific facts or evidence, those arguments may be deemed waived. Arguments must be presented in the motion itself, not raised solely through declaration evidence. (See, e.g., Quantum Cooking Concepts, Inc. v. LV Assocs., Inc. (2011) 197 Cal.App.4th 927, 931, 934–935 [arguments not raised in the motion are forfeited]; see also Cal. Rules of Court, rule 3.1113(b) [stating that the supporting memorandum “must contain a statement of facts, a concise statement of the law, evidence and arguments relied on, and a discussion of the statutes, cases, and textbooks cited in support of the position advanced.”].) Respondent’s motion does not adequately allege the sort of fraud or other grounds for invalidity which would enable the Court to make some other correction. The allegations made are, as Petitioner asserts, precisely the sort for which judicial review is unavailable. Respondent’s motion to vacate, or in the alternative, correct appraisal award is GRANTED for the arithmetic error and the amount is modified to \$505,789.25.

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evidence. (See, e.g., *Quantum Cooking Concepts, Inc. v. LV Assocs., Inc.* (2011) 197 Cal.App.4th 927, 931, 934–935 [arguments not raised in the motion are forfeited]; see also Cal. Rules of Court, rule 3.1113(b) [stating that the supporting memorandum “must contain a statement of facts, a concise statement of the law, evidence and arguments relied on, and a discussion of the statutes, cases, and textbooks cited in support of the position advanced.”].)

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